

1.

CASE #	CASE NAME	HEARING NAME
CVME2402590	HORWATH VS MIRAGE ESTATES HEMET LLC	MOTION TO COMPEL: ANSWER/RESPONSE TO SPECIAL INTERROGATORIES

Tentative Ruling: Unopposed Motion to compel is Granted. Plaintiff to serve code compliant verified responses to Special Interrogatories without objections within 30 days of this order. Sanctions awarded Defendant in the amount of \$669.50

2.

CASE #	CASE NAME	HEARING NAME
CVME2402590	HORWATH VS MIRAGE ESTATES HEMET LLC	MOTION TO COMPEL: PRODUCTION OF DOCUMENTS

Tentative Ruling: Unopposed Motion to compel is Granted. Plaintiff to serve code compliant verified responses to Request for Production of Documents without objections within 30 days of this order. Sanctions awarded Defendant in the amount of \$669.50

3.

CASE #	CASE NAME	HEARING NAME
CVME2402590	HORWATH VS MIRAGE ESTATES HEMET LLC	MOTION TO COMPEL: ANSWER/RESPONSE TO FORM INTERROGATORIES

Tentative Ruling: Unopposed Motion to compel is Granted. Plaintiff to serve code compliant verified responses to Form Interrogatories without objections within 30 days of this order. Sanctions awarded Defendant in the amount of \$669.50.

4.

CASE #	CASE NAME	HEARING NAME
CVME2503640	LA CRESTA PROPERTY OWNERS' ASSOCIATION VS GHAFOURI	ANTI-SLAPP MOTION

Tentative Ruling: Motion Denied as to the 11th Cause of Action (Defamation), 17th Cause of Action (intentional interference with prospective economic advantage), the 18th cause of action (constructive eviction), and the 19th cause of action (quiet enjoyment). Denied as to the 15th cause of action (intentional infliction of emotional distress) and the 16th cause of action (negligent infliction of emotional distress) to the extent those claims are based on physical/non-speech conduct. Motion to Strike is Granted only as to ¶¶ 129, 130, and 134 of the Cross-Complaint for the speech-based allegations under the 15th and 16th causes of action. Cross Defendants to Respond within 30 days of this order.

Timeliness - An anti-SLAPP motion “may be filed within 60 days of the service of the complaint or, in the court’s discretion, at any later time upon terms it deems proper.” (Code Civ. Proc., § 425.16(f).) The purpose of the 60-day limitations is to require presentation and resolution at the outset of litigation before the parties have incurred significant expenditures in litigation and to avoid tactical manipulation of the stay that occurs when an anti-SLAPP motion is filed. (Platypus Wear, Inc. v. Goldberg (2008))